



CHAPTER cxxxvii.

An Act to confirm certain Provisional Orders of the A.D. 1912.
Local Government Board relating to Carlisle and
Wallasey. [7th August 1912.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the First Schedule hereto
under the provisions of the Local Government Act 1888 :

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Orders should be
confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows :—

1. The Orders as altered and set out in the First Schedule
hereto (herein-after referred to as "the Orders") shall be and the
same are hereby confirmed and all the provisions thereof shall
have full validity and force.

Orders in
First
Schedule
confirmed.

2. On any adjustment made otherwise than by agreement
for the purposes of either of the Orders or of this Act under
section thirty-two or section sixty-two of the Local Government
Act 1888 or under either of those sections as modified or adapted
by such Order—

Provisions
as to adjust-
ments made
otherwise
than by
agreement.

(a) Provision shall be made for the payment to any council
or other authority affected by the Order of such sum
as seems equitable in accordance with the rules con-
tained in Part I. of the Second Schedule hereto in
respect of any increase of burden which will properly
be thrown on the ratepayers of the area of that council
or other authority in meeting the cost incurred by

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that council or other authority in the execution of any of their powers and duties as a consequence of any alteration of boundaries effected by the Order or other change in relation to which the adjustment takes place :

- (b) Any adjustment of the local taxation licences the estate duty grant and the residue under section one of the Local Taxation (Customs and Excise) Act 1890 in pursuance of the Order relating to Wallasey shall be carried out in accordance with the rules contained in Part II. of the Second Schedule hereto.

In this section and in Part I. of the said Second Schedule the expression "council or other authority affected by the Order" includes any council authority or persons entitled to make an adjustment under section sixty-two of the Local Government Act 1888 or that section as modified or adapted by the Order in question.

Confirmation
of agreement
between the
Wallasey
Corporation
and the
Cheshire
County
Council.

3. Any agreement entered into between the mayor aldermen and burgesses of the borough of Wallasey and the council of the administrative county of Chester before the commencement of the County Borough of Wallasey Order 1912 as to financial or other adjustments and arrangements or as to payments to be made by either of the said parties to the other of them in relation to or in connexion with the said Order shall have full force and effect.

Short title.

4. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1912.

SCHEDULES.

A.D. 1912.

FIRST SCHEDULE.

CITY OF CARLISLE.

*Provisional Order made in pursuance of Sections 54 and 59 of
the Local Government Act 1888.*

*Carlisle
Order.*

- To the Mayor Aldermen and Citizens of the City of Carlisle ;—
- To the Court of Quarter Sessions for the said City ;—
- To the Justices of the Peace for the said City ;—
- To the Justices of the Peace for the County of Cumberland in
Quarter Sessions assembled ;—
- To the County Council of Cumberland ;—
- To the Rural District Council of Carlisle ;—
- To the Guardians of the Poor of the Carlisle Union ;—
- To the Parish Councils of Belle Vue Cummersdale Kingmoor
Saint Cuthbert Without Stanwix and Wetheral ;—
- To the Chairman of the Parish Meeting of the Parish of Grins-
dale ;—
- To the Overseers of the Poor of each of the Parishes of Belle Vue
Carlisle Grinsdale Kingmoor Saint Cuthbert Without Stanwix
and Wetheral and of the Township of Cummersdale ;—
- To the Joint Committee appointed by the Council of the City of
Carlisle and the Parish Councils of Belle Vue Cummersdale
and Saint Cuthbert Without and exercising the powers and
duties of the authority under the Burial Acts 1852 to 1906 ;—
- To the Stanwix Burial Board ;—

And to all others whom it may concern.

WHEREAS by Section 54 of the Local Government Act 1888 the 51 & 52 Vict.
Local Government Board are empowered to make a Provisional Order c. 41.
for altering the boundary of any Borough and by such Order to divide
or alter any electoral division ;

And whereas the City of Carlisle in the County of Cumberland is
a Borough within the meaning of the Local Government Act 1888
and the inhabitants are a body corporate by the name of the Mayor

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A.D. 1912. Aldermen and Citizens of the City of Carlisle and act by the Council of the said City which now consists of the Mayor (who is also an Alderman) nine other Aldermen and thirty Councillors and the said City is for the purpose of the election of Councillors divided into ten wards;

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Order.*

And whereas the said City is co-extensive with the Parish of Carlisle and is an Urban District of which the Mayor Aldermen and Citizens acting by the Council are the Urban District Council;

And whereas the said City has a separate court of quarter sessions commission of the peace police force recorder and coroner;

2 Edw. 7.
c. 42.

And whereas in pursuance of the Education Act 1902 the Council of the said City are the local education authority for the purposes of Part III. of that Act and the County Council of Cumberland are the local education authority for the other purposes of that Act;

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the schedule to this Order and of the Confirmation Acts specified in Part II. of the said schedule so far as the last-mentioned Acts relate to the Orders specified in that schedule are in force in the said City;

And whereas the provisions of—

53 & 54 Vict.
c. 34.

(a) The Infectious Disease (Prevention) Act 1890;

53 & 54 Vict.
c. 59.

(b) The Public Health Acts Amendment Act 1890;

54 & 55 Vict.
c. 22.

(c) The Museums and Gymnasiums Act 1891;

7 Edw. 7.
c. 40.

(d) The Notification of Births Act 1907;

9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.

(e) The Baths and Washhouses Acts 1846 to 1899; and

41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.

(f) The Public Libraries Acts 1892 to 1901;

59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.

are in force in the said City;

55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.

And whereas the Parishes or Townships of Belle Vue Cummersdale Saint Cuthbert Without and Stanwix in the County of Cumberland immediately adjoin the said City;

29 & 30 Vict.
c. 90.

And whereas part of the Parish of Stanwix was in pursuance of the Sanitary Act 1866 constituted a Special Drainage District termed the Stanwix Special Drainage District;

And whereas the Parishes or Townships of Belle Vue Cummersdale and Saint Cuthbert Without the Stanwix Special Drainage District that part of the Parish of Stanwix which is not comprised within the said Special Drainage District and the Parishes of Grinsdale Kingmoor Kirkandrews upon Eden and Wetheral in the said County are contributory places in the Rural District of Carlisle and are subject to the jurisdiction of the Rural District Council of Carlisle and one Rural District Councillor is elected for each of the Parishes or Townships of

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Belle Vue Cummersdale and Kingmoor and the Parish of Grinsdale is for the purpose of the election of one Rural District Councillor united with the Parish of Kirkandrews upon Eden and three Rural District Councillors are elected for each of the Parishes of Saint Cuthbert Without and Stanwix and the Parish of Wetheral is for the purpose of the election of Rural District Councillors divided into three wards one of which is termed the Wetheral Ward and one Rural District Councillor is elected for each of those wards;

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And whereas the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts are in force in the said Rural District;

And whereas the Lighting and Watching Act 1833 has been adopted in part of each of the Parishes of Saint Cuthbert Without and Stanwix;

3 & 4 Will. 4.
c. 90.

And whereas the Parishes or Townships of Belle Vue Carlisle Cummersdale Grinsdale Kingmoor Kirkandrews upon Eden Saint Cuthbert Without Stanwix and Wetheral are included in the Carlisle Union and the Parish of Carlisle is represented on the Board of Guardians of that Union by sixteen Guardians and for the purpose of the election of Guardians is divided into five wards and the thirteen Rural District Councillors elected for the Parishes or Townships of Belle Vue Cummersdale Grinsdale Kingmoor Kirkandrews upon Eden Saint Cuthbert Without and Stanwix and the wards of the Parish of Wetheral are the representatives of those Parishes or Townships on the said Board of Guardians;

And whereas the Parishes or Townships of Belle Vue Cummersdale Kingmoor Saint Cuthbert Without Stanwix and Wetheral are Rural Parishes within the meaning of the Local Government Act 1894 for which Parish Councils have been established;

56 & 57 Vict.
c. 73.

And whereas each of the Parishes of Saint Cuthbert Without Stanwix and Wetheral is divided into wards for the purpose of the election of Parish Councillors and the wards into which the Parish of Wetheral is divided for this purpose are coterminous in area with and bear the same names as the wards into which the Parish is divided for the election of Rural District Councillors;

And whereas in pursuance of the Education Act 1902 the Parishes or Townships of Belle Vue Cummersdale Saint Cuthbert Without Stanwix and Wetheral form part of the area of the County Council of Cumberland as the local education authority;

And whereas the Stanwix Burial Board are the authority for the execution of the Burial Acts 1852 to 1906 for part of the Parish of Stanwix;

15 & 16 Vict.
c. 85.
6 Edw. 7.
c. 44.

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And whereas by virtue of subsection (2) of Section 53 of the Local Government Act 1894 the powers and duties of the authority under the Burial Acts 1852 to 1906 for an area comprised in the Parishes or Townships of Belle Vue Carlisle Cummersdale and Saint Cuthbert Without were transferred to the Council of the said City and the Parish Councils of Belle Vue Cummersdale and Saint Cuthbert Without and the said powers and duties are exercised by a Joint Committee appointed in pursuance of the said section;

And whereas eight County Councillors for the County of Cumberland are apportioned to the said City and the said City has accordingly been divided into eight Electoral Divisions which are termed respectively the No. 1 or City Electoral Division the No. 2 or Rickergate Electoral Division the No. 3 or Botchergate No. 1 Electoral Division the No. 4 or Botchergate No. 2 Electoral Division the No. 5 or Botchergate No. 3 Electoral Division the No. 6 or Caldewgate No. 1 Electoral Division the No. 7 or Caldewgate No. 2 Electoral Division and the No. 8 or Caldewgate No. 3 Electoral Division and the Parishes or Townships of Belle Vue Cummersdale and Saint Cuthbert Without are included in the Saint Cuthbert Without Electoral Division of the said County the Parish of Stanwix is included in the Stanwix Electoral Division of the said County and the Parish of Wetheral is included in the Wetheral Electoral Division of the said County:

51 & 52 Vict.
c. 41.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 54 and 59 of the Local Government Act 1888 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

Definitions.

Art. I. In this Order—

- (1) The expression “the commencement of this Order” means the Ninth day of November One thousand nine hundred and twelve;
- (2) The expression “the existing City” means the City of Carlisle as it existed immediately prior to the commencement of this Order;
- (3) The expression “the City” means the existing City as extended by this Order;
- (4) The expression “the Corporation” means as the context requires the Mayor Aldermen and Citizens of the existing City or of the City acting by the Council;
- (5) The expressions “the County” and “the County Council” mean respectively the Administrative County of Cumberland and the County Council of that County;

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- (6) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Carlisle and the Rural District Council of that District; A.D. 1912.
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- (7) The expression "the City maps" means the two maps each marked "Map of the City of Carlisle as extended 1912" and sealed with the official seal of the Local Government Board;
- (8) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the City of Carlisle as extended 1912" and sealed with the official seal of the Local Government Board;
- (9) The expression "the added areas" means the parts of the Rural District added to the existing City by this Order;
- (10) The expressions "the added part of Belle Vue" "the added part of Stanwix" and "the added part of Wetheral" mean respectively the parts of those Parishes which are coloured yellow green and purple on the City maps the expression "the added parts of Cummersdale" means the parts of that Township which are coloured light brown and dark brown on the City maps the expression "the added parts of Saint Cuthbert Without" means the parts of that Parish which are coloured light blue dark blue and red on the City maps and the expression "the excluded part of Belle Vue" "the excluded part of Cummersdale" "the excluded parts of Saint Cuthbert Without" "the excluded parts of Stanwix" and "the excluded part of Wetheral" mean respectively the remaining parts of those Parishes;
- (11) The expressions "the existing Parish of Carlisle" "the existing Township of Cummersdale" "the existing Parish of Grinsdale" "the existing Parish of Kingmoor" "the existing Parish of Saint Cuthbert Without" "the existing Parish of Stanwix" and "the existing Parish of Wetheral" mean in each case the parish as it existed immediately prior to the commencement of this Order and the expressions "the Parish of Carlisle" "the Township of Cummersdale" "the Parish of Grinsdale" "the Parish of Kingmoor" "the Parish of Saint Cuthbert Without" "the Parish of Stanwix" and "the Parish of Wetheral" mean in each case the parish as altered by this Order;
- (12) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;

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(13) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;

(14) The expression "the Burial Acts" means the Burial Acts 1852 to 1906;

(15) The expressions "the Carlisle Burial Committee" and "the Carlisle Burial Area" mean respectively the Joint Committee appointed by the Council of the existing City and the Parish Councils of the existing Parishes or Townships of Belle Vue Cummersdale and Saint Cuthbert Without under subsection (2) of Section 53 of the Act of 1894 for the purposes of the Burial Acts and the area within which the Carlisle Burial Committee exercise the powers and duties of the authority under the Burial Acts the expression "the Stanwix Burial Area" means the area within which the Stanwix Burial Board exercise the powers and duties of the authority under the Burial Acts and the expression "the Burial Areas" means the Carlisle Burial Area and the Stanwix Burial Area.

Commence-
ment of
Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and twelve:

Date of
operation of
Order for
parish bur-
gess lists &c.
51 Vict. c. 10.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the City under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and twelve and of the revision of the basis or standard of the county rate this Order shall operate from the date of the Act of Parliament confirming this Order.

Extension of
City.

Art. III.—(1) The boundary of the existing City the area whereof is coloured pink on the City maps shall be altered so as to include in addition to that area so much of the Rural District as comprises the added part of Belle Vue the added parts of Cummersdale the added parts of Saint Cuthbert Without the added part of Stanwix and the added part of Wetheral.

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(2) The boundary of the City shall be that shown by the red line on the City maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the City.

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Art. IV.—(1) One of the City maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing City at his office within fourteen days after the date of this Order. Copies of the City map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Rural Council to the Registrar-General to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Board of Trade and to the Board of Agriculture and Fisheries and copies of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Board of Agriculture and Fisheries.

Deposit of
maps.

(2) Copies of or extracts from the City map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the City and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the City and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the city fund.

Copies of
map to be
evidence.

Art. V. The powers and duties of the quarter sessions recorder clerk of the peace and coroner of the existing City of the justices of the peace appointed for the existing City and of the clerk to those justices and of the police constables and other peace officers of the existing City shall extend to and apply throughout the City:

Powers and
duties of
justices &c.
extended.

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices or coroner in relation to any matter arising in or concerning any part of the added areas may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Art. VI.—(1) For the purposes of the parish burgess lists and burgess roll and the other lists to be made under the Municipal

Parish bur-
gess lists &c.

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A.D. 1912. Corporations Acts and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have always been part of the City.
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(2) In making out revising or otherwise dealing with the said lists and roll or the lists of county electors and the county register to be made for the County in pursuance of the County Electors Act 1888 or any Act amending that Act or the lists and registers of parochial electors effect shall be given so far as the circumstances require or allow to the provisions of this Order.

(3) Where any difficulty arising in the year One thousand nine hundred and twelve in giving effect to the provisions of this Order can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said lists roll and registers that alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk of the existing City or the clerk of the County Council as the case may require and the Overseers of the Poor shall render such assistance as may be requisite for the purpose of the said alteration re-arrangement or action by the town clerk or clerk of the County Council as the case may be and that alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the said lists roll and registers.

Art. VII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Division into
wards.

(1) For the purposes of the election of Councillors the City shall be divided into ten wards which shall be named respectively the No. 1 or Stanwix and Etterby Ward the No. 2 or Ricker-gate Ward the No. 3 or Aglionby Ward the No. 4 or Greystone Ward the No. 5 or Saint Nicholas Ward the No. 6 or Currock Ward the No. 7 or Denton Holme Ward the No. 8 or Saint Cuthbert's Ward the No. 9 or Caldewgate Ward and the No. 10 or Newtown and Belle Vue Ward:

Boundaries
of wards.

(2) Each of the said wards shall comprise that portion of the City which is indicated by a separate colour and distinguished by the name of the ward on the Ward maps:

(3) Three Councillors shall be assigned to each of the said wards.

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Art. VIII. For the purposes of the election of a town council for the City in pursuance of the Municipal Corporations Acts in the month of November One thousand nine hundred and twelve the following provisions shall apply:—

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Provisions
for election
of Council-
lors and
Aldermen in
1912.

- (a) The town clerk and the Mayor of the existing City or such other persons as the Local Government Board shall appoint shall perform the duties devolving upon the town clerk and Mayor respectively under the Municipal Corporations Acts and the Mayor of the existing City shall be the returning officer at the election for all the wards. Provided that the Mayor of the existing City may appoint some other person to act as returning officer at the election for any of the wards:
- (b) Thirty Councillors of the City shall be elected on the First day of November One thousand nine hundred and twelve and ten Aldermen of the City shall be elected on the Ninth day of November One thousand nine hundred and twelve:
- (c) Notwithstanding anything in the Municipal Corporations Acts to the contrary all the Councillors of the existing City who shall be in office on the First day of November One thousand nine hundred and twelve shall go out of office on that date and all the Aldermen of the existing City who shall be in office on the Eighth day of November One thousand nine hundred and twelve shall go out of office on that date and all the said Councillors and Aldermen shall if otherwise qualified be eligible for election as Councillors of the City on the First day of November One thousand nine hundred and twelve.

Art. IX.—(1) The Councillors elected for the City in the year One thousand nine hundred and twelve in pursuance of this Order shall retire as follows:—

Retirement of
Councillors
and Alder-
men elected
in 1912.

- (a) The Councillor for each ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and thirteen:
- (b) The Councillor for each ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and fifteen:
- (c) The other Councillor for each ward on the First day of November One thousand nine hundred and fourteen.

(2) The Aldermen elected for the City in the year One thousand nine hundred and twelve in pursuance of this Order shall retire as follows:—

- (a) The five Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and fifteen:
- (b) The other five Aldermen on the Ninth day of November One thousand nine hundred and eighteen.

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Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the City shall on the Ninth day of November One thousand nine hundred and twelve or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

Local Acts
and Orders.

Art. X. Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that Schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing City or the Corporation as the same respectively are in force within the existing City at the commencement of this Order shall extend and apply to the City and any reference therein to the existing City and the Corporation shall be deemed to refer to the City and the Corporation thereof.

Byelaws &c.

Art. XI. Subject to the provisions of this Order—

(1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing City shall thenceforth apply to the City until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed:

(2) All byelaws and regulations made by the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Rural Council or have been sent to the surveyor or clerk to the Rural Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the City were referred to therein instead

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of the Rural Council and the Rural District respectively A.D. 1912.
 Provided that any proceedings which if this Order had
 not been made might have been taken by the Rural *Carlisle*
 Council for any offence committed before the commence- *Order.*
 ment of this Order against any byelaws and regulations
 made by the Rural Council or their predecessors and in
 force immediately before the commencement of this Order
 in any part of the added areas may be taken by the
 Corporation as if those byelaws and regulations had
 remained in force and the Corporation had been substi-
 tuted therein for the Rural Council.

Art. XII.—(1) The town clerk and all other officers and servants *Town clerk*
 of the Corporation of the existing City who hold office at the com- *and other*
 mencement of this Order shall continue to be the town clerk and *officers con-*
 officers and servants of the Corporation of the City and shall hold *tinued.*
 their offices by the same tenure as at that date.

(2) The auditors of the existing City who are in office at the *City auditors.*
 commencement of this Order shall continue in office and shall for the
 purposes of the Municipal Corporations Acts be the city auditors until
 the next ordinary day of election of city auditors.

Art. XIII.—(1) Every clerk to justices and county coroner and *Compensa-*
 every officer or servant of or paid by the County Council or of or *tion to exist-*
 paid by the Standing Joint Committee of the County and every other *ing officers.*
 officer or servant who by virtue of this Order or of anything done
 in pursuance or in consequence thereof suffers any direct pecuniary
 loss by abolition of office or by diminution or loss of fees or salary
 and for whose compensation no other provision is made by any
 enactment for the time being in force and applicable to his case shall
 be entitled to have compensation paid to him by the Corporation for
 that pecuniary loss and in determining the said compensation regard
 shall be had to the conditions and other circumstances required by
 subsection (1) of Section 120 of the Act of 1888 to be had in regard
 in cases of compensation under that section and the compensation
 shall not exceed the limit therein mentioned and shall be paid in the
 case of any such officer or servant whose office or employment relates
 wholly or partly to sanitary purposes as defined by the Public Health
 Act 1875 out of the district fund and general district rate of the City
 and in every other case out of the city fund and city rate of the
 City and the provisions of subsections (2) to (7) of Section 120 of
 the Act of 1888 shall apply with the necessary modifications Provided
 that the non-acceptance of any office shall not be a bar to the right
 of any officer to compensation.

(2) For the purposes of subdivision (1) of this Article any clerk
 to justices county coroner or officer or servant to whom that sub-

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A.D. 1912. division applies and whose services are dispensed with or whose salary is reduced by the Secretary of State or the County Council or the Standing Joint Committee or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

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(3) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Actions &c.
not to abate:

Art. XIV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the City.

Saving for
contracts &c.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the City and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Corporation
property &c.

Art. XV. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing City shall by virtue of this Order be held by the Corporation for the benefit of the City and the Corporation shall hold enjoy and exercise for the benefit of the City all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing City and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing City shall from and after that date attach to them in respect of the City.

Art. XVI. Subject to the provisions of this Order—

Property &c.
of Rural
Council.

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to any part of the added areas shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to the Rural Council in relation to

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

any part of the added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888 : A.D. 1912.
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Order.

- (2) All those lands belonging to the Rural Council and adjoining Powlees Lane in the Parish of Stanwix which were acquired by them for the disposal of the sewage of the contributory places of Belle Vue Stanwix the Stanwix Special Drainage District and Kingmoor together with the works thereon and also any sewer of the Rural Council which is situate in the excluded part of Stanwix and connects the sewers in the City with those works together with all the liabilities attached to the Rural Council in relation to the said lands works and sewers shall by virtue of this Order be transferred to and vest in and attach to the Corporation as the Urban District Council and the liability of the Corporation to continue to receive and treat the sewage of Kingmoor shall be a matter for adjustment under Section 62 of the Act of 1888 :
- (3) The Rural Council shall cease to exercise any powers or have any duties within any part of the added areas : Cesser of jurisdiction of Rural Council.
- (4) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Order are due or owing in respect of hereditaments in the added areas may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied or in the case of rates made in any part of the existing Parishes of Saint Cuthbert Without or Stanwix for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses incurred by the Parish Councils of those parishes respectively under the last-mentioned Act and the balances (if any) shall be paid to the Corporation : Arrears of rates &c.
- (5) Any balances in the hands of the Overseers of the Parishes or Townships of Belle Vue Cummersdale Saint Cuthbert Without Stanwix and Wetheral at or immediately before the commencement of this Order and any sum collected after the commencement of this Order by the Overseers of the Parishes or Townships of Carlisle Cummersdale Saint Cuthbert Without Stanwix and Wetheral in respect of Adjustment of balances.

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

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Order.*

Adaptation
of provisions
as to adjust-
ment.

any rate made before that date and levied upon any rate-
able hereditament in the added areas shall be a matter for
adjustment under Section 62 of the Act of 1888:

(6) For the purposes of the application of Section 62 of the Act
of 1888 to any adjustment which may become necessary
in consequence of this Order that section shall have effect
as if in subsections (5) (6) and (7) thereof the expression
"Council" included any authority affected by this Order
or by anything done in pursuance of this Order and as
if in the case of any such authority not otherwise
empowered to borrow under any Act or on any security
or in any manner mentioned in the said subsection (6)
that subsection empowered the authority to borrow under
any Act relating to and conferring on the authority a
power to borrow on the security of all or any of the funds
rates and revenues of the authority and in the manner
provided by the said Act but without the consent of any
other authority and subject to the requirement that all
money so borrowed shall be repaid within such period as
the Local Government Board may sanction:

(7) For the purposes of the application of Section 62 of the
Act of 1888 to any adjustment which may become
necessary in consequence of this Order so far as it
relates to the abolition or the alteration of the area of
any existing Parish or Township that section shall have
effect—

(A) As if the Overseers of the Parishes or Townships
of Carlisle Cummersdale Grinsdale Kingmoor Saint
Cuthbert Without Stanwix and Wetheral and the
persons who immediately before the commencement of
this Order were the Overseers of the Parish of Belle
Vue or where the circumstances of the case so require
any persons who may be substituted for those persons
by an order of the Local Government Board were
within the meaning of the said section as applied by
this Article authorities affected by this Order;

(B) As if the poor rate or any other rate leviable in
pursuance of the said section as applied by this Article
were substituted for any fund mentioned in the section;
and

(C) As if for subsections (6) and (7) of the said
section there were substituted the subsections hereunto
appended that is to say:—

"(6) If it is necessary for the purpose of giving
effect to any agreement or award for an adjustment

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

“ that a separate rate shall be levied in part of a A.D. 1912.
 “ parish only the agreement or award may authorise *Carlisle*
 “ the making of such a separate rate as if it were *Order.*
 “ a poor rate and as if the part of the parish on
 “ which it is to be levied were a whole parish.”
 “ (7) Any capital sum paid for the purposes of any
 “ adjustment or in pursuance of any order or award
 “ of an arbitrator shall be applied by such person
 “ in such manner and for such purpose as the Local
 “ Government Board may authorise or direct.”

Art. XVII. Subject to the provisions of this Order—

Mortgage
debts of Cor-
poration.

- (1) The liability for repayment of any moneys borrowed by the Corporation or by any Parish Council or by the Stanwix Burial Board for the purposes of the Burial Acts in respect of either of the Burial Areas or of any moneys borrowed by the Rural Council for the purposes of sewerage and sewage disposal for the contributory place of Stanwix the Stanwix Special Drainage District and for the added part of Belle Vue or of so much of any of those moneys as is owing at the commencement of this Order and for the payment of the interest thereon shall by virtue of this Order be transferred and attach to the Corporation:
- (2) So much as at the commencement of this Order is outstanding in respect of the moneys borrowed as aforesaid by the Rural Council together with so much of any sums borrowed by the Corporation as at the commencement of this Order is owing and charged upon the district fund and general district rate of the existing City shall by virtue of this Order be charged upon the district fund and general district rate of the City:
- (3) So much as at the commencement of this Order is outstanding in respect of the moneys borrowed as aforesaid for the purposes of the Burial Acts together with so much of any sums borrowed by the Corporation as at the commencement of this Order is owing and charged upon the city fund and city rate of the existing City shall by virtue of this Order be charged upon the city fund and city rate of the City:
- (4) All borrowed moneys to which this Article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable:

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

*Carlisle
Order.*

(5) Nothing in this Order shall prejudicially affect any mortgage or other security which has been given in respect of any sums borrowed as aforesaid or the rights and powers of the persons entitled under such mortgage or other security to enforce the same and when for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the general district rate of the City or the city rate of the City as the case may be shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Order had not been made.

*Adoptive
Acts.*

Art. XVIII. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Museums and Gymnasiums Act 1891 the Public Libraries Acts 1892 to 1901 and the Notification of Births Act 1907 shall be in force in and apply to the City as if the same had been adopted therein.

*Powers under
Sections 33
and 34 of Act
of 1894.*

Art. XIX. Subject to the provisions of any order which the Local Government Board may hereafter make the provisions of any order heretofore made by the Local Government Board and conferring upon the Council of the existing City any of the matters mentioned in Section 33 or in Section 34 of the Act of 1894 and in that order shall so far as the same are in force within and apply to the existing Parish of Carlisle be deemed to have effect as if any reference in those provisions to a parish wholly comprised within the existing City extended and applied to the Parish of Carlisle.

*Differential
rating.*

Art. XX. Subject as herein-after provided—

(1) The general district rate and any rate in the nature of a general district rate to be levied by the Corporation in any one year during a period of five years from the commencement of this Order in respect of any hereditament in the added areas shall not exceed such an amount in the pound as when added to the city rate the poor rate and any other rate made by the Corporation in the same year will in respect of the assessment of any hereditament included in any such rate make up—

(a) in the case of the added part of Belle Vue a total of six shillings; and

(b) in the case of the added parts of Cummersdale a total of four shillings and sixpence; and

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

(c) in the case of the added parts of Saint Cuthbert Without a total of four shillings and ninepence; and

(d) in the case of the added part of Stanwix a total of six shillings and fourpence; and

(e) in the case of the added part of Wetheral a total of four shillings and ninepence

in each pound of the rateable value of the hereditament;
and

- (2) The general district rate and any rate in the nature of a general district rate to be levied by the Corporation in any one year during a period of five years from the Ninth day of November One thousand nine hundred and seventeen in respect of any hereditament in the added areas shall not exceed such an amount in the pound as when added to the city rate the poor rate and any other rate made by the Corporation in the same year will in respect of the assessment of any hereditament included in any such rate make up—

(a) in the case of the added part of Belle Vue a total of six shillings and threepence; and

(b) in the case of the added parts of Cummersdale a total of five shillings; and

(c) in the case of the added parts of Saint Cuthbert Without a total of five shillings; and

(d) in the case of the added part of Stanwix a total of six shillings and sixpence; and

(e) in the case of the added part of Wetheral a total of five shillings

in each pound of the rateable value of the hereditament:

Provided that when the Corporation shall have carried out works approved by the Local Government Board for sewerage the added parts of Cummersdale or the added parts of Saint Cuthbert Without or the added part of Wetheral the total amount in the pound of the general district rate which may thereafter be levied by the Corporation under the foregoing provisions of this Article in any one year in respect of any hereditament in the added parts of Cummersdale or the added parts of Saint Cuthbert Without or the added part of Wetheral as the case may be may be increased by a sum not exceeding one shilling in each pound of the rateable value of the hereditament:

Provided also that if the City shall hereafter be constituted into a County Borough nothing in this Article shall have effect so as to

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912. apply in relation to any of the added areas any limit upon the amount of a rate leviable for the purpose of defraying any expenses of the Corporation which if the City had not been constituted into a County Borough would or might have been payable out of the county fund.

*Carlisle
Order.*

Corporation
to be Burial
Board for
City.

Art. XXI. — (1) The Corporation shall be the Burial Board for the City and shall have within the City to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts Provided that no approval sanction or authorisation of the vestry of the Parish of Carlisle shall be required in respect of any act of the Corporation as the Burial Board as aforesaid.

Abolition
of existing
burial autho-
rities.

(2) All property and liabilities of the Burial Areas shall by virtue of this Order vest in and be transferred and attach to the Corporation as the Burial Board for the City and the Carlisle Burial Committee and the Stanwix Burial Board shall be abolished and cease to exist.

Saving rights
of burial.

(3) The rights of the parishioners and inhabitants of the excluded part of Belle Vue the Township of Cummersdale and the excluded parts of Saint Cuthbert Without with regard to burial in any burial ground provided for the Carlisle Burial Area and the rights of the parishioners and inhabitants of so much of the Stanwix Burial Area as is not included by this Order in the City with regard to burial in any burial ground provided for the Stanwix Burial Area shall not be altered but shall continue as if this Order had not been made and the burial charges to such parishioners and inhabitants shall be the same as are made in respect of interments of persons resident in the City.

(4) In relation to a burial ground provided for the Carlisle Burial Area or the Stanwix Burial Area—

Nothing in this Order shall prejudice or affect any such right of burial or of constructing a place of burial or of erecting and placing any monument gravestone tablet or monumental inscription as a parishioner an inhabitant or any other person has had or acquired before the commencement of this Order; and

Nothing in this Order shall prejudicially affect any right privilege authority or duty which immediately before the commencement of this Order will be exerciseable by or attach to any incumbent or sexton under the Burial Acts.

Burial fees
&c.

(5) Subject to the provisions of the Burial Act 1900 all fees payments and sums fixed and settled and receivable by the Carlisle Burial Committee or by the Stanwix Burial Board immediately prior to the commencement of this Order shall thenceforth be receivable by the Corporation acting as a Burial Board until or except in so far as any such fees payments or sums may be altered or varied in pursuance of the statutory provisions in that behalf.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

*Carlisle
Order.*

Cessation of
Burial Acts in
excluded areas.

(6) Except so far as is necessary for any purpose of this Article the Burial Acts shall cease to apply and have effect in the excluded part of Belle Vue the excluded part of Cummersdale the excluded parts of Saint Cuthbert Without and the excluded parts of Stanwix.

Art. XXII. For the purposes and subject to the provisions of the Education Acts 1870 to 1910 and the Education (Administrative Provisions) Act 1911—

- (1) All public elementary schools (including the sites and school-houses) provided by the local education authority and any other land acquired and held by the local education authority for purposes of elementary education and situate within any part of the added areas with the furniture and fittings of the schoolhouses shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of the said public elementary schools land furniture or fittings or of any other public elementary school situate in any part of the added areas or with respect to the officers teachers and servants of any of the public elementary schools in this subdivision mentioned shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority:

Transfer of
public ele-
mentary
schools &c. to
Corporation.

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision:

- (2) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and of any other land furniture or fittings transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the city fund and the city rate of the City and shall be repaid by the Corporation within the

Mortgage
debts in
respect of
transferred
schools.

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

*Carlisle
Order.*

Education
byelaws.

Managers.

County
police.

53 & 54 Vict.
c. 45.
6 Edw. 7.
c. 7.

Electoral
Divisions and
County
Councillors.

period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:

(3) Any byelaws in force in the existing City immediately before the commencement of this Order shall from and after that date apply to the City until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force:

(4) Any managers of public elementary schools in the added areas who were appointed by the County Council or by the Parish Council of the parish in which the school is situated shall vacate office at the commencement of this Order:

(5) Any managers of a public elementary school in the part of the existing Parish of Stanwix which is by this Order included in the Parish of Kingmoor who were appointed by the Parish Council of the existing Parish of Stanwix shall vacate office at the commencement of this Order.

Art. XXIII.—(1) At the commencement of this Order such members if any of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing City or in default of any such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the City and any member of the county police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he is entitled shall not be less than they would have been if this Order had not been made.

(2) The provisions of Section 15 (2) of the Police Act 1890 as amended by the Police (Superannuation) Act 1906 shall extend and apply to and in relation to any member of the police force of the County transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the County.

Art. XXIV. Subject to the provisions of Section 54 of the Act of 1888—

(1) The added part of Belle Vue shall be transferred from the Saint Cuthbert Without Electoral Division to the No. 6 or Caldewgate No. 1 Electoral Division of the County:

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

- (2) The added part of Cummersdale which is coloured light brown on the City maps shall be transferred from the Saint Cuthbert Without Electoral Division to the No. 7 or Caldewgate No. 2 Electoral Division of the County: A.D. 1912.
Carlisle
Order.
- (3) The added part of Cummersdale which is coloured dark brown on the City maps shall be transferred from the Saint Cuthbert Without Electoral Division to the No. 8 or Caldewgate No. 3 Electoral Division of the County:
- (4) The added parts of Saint Cuthbert Without which are coloured dark blue and red on the City maps shall be transferred from the Saint Cuthbert Without Electoral Division to the No. 4 or Botchergate No. 2 Electoral Division of the County:
- (5) The added part of Saint Cuthbert Without which is coloured light blue on the City maps shall be transferred from the Saint Cuthbert Without Electoral Division to the No. 5 or Botchergate No. 3 Electoral Division of the County:
- (6) The added part of Stanwix shall be transferred from the Stanwix Electoral Division to the No. 2 or Rickergate Electoral Division of the County:
- (7) The added part of Wetheral shall be transferred from the Wetheral Electoral Division to the No. 4 or Botchergate No. 2 Electoral Division of the County:
- (8) The part of the existing Parish of Saint Cuthbert Without which is by this Order included in the Parish of Wetheral shall be transferred from the Saint Cuthbert Without Electoral Division to the Wetheral Electoral Division of the County:
- (9) The persons who immediately before the commencement of this Order are the County Councillors representing the above-mentioned Electoral Divisions of the County shall continue to represent the same divisions as if they had been originally elected to represent those divisions as hereby altered.

Art. XXV. It shall be the duty of the Corporation within two years after the date of the Act of Parliament confirming this Order to proceed to carry out and execute works approved by the Local Government Board for the sewerage and disposal of the sewage of the added part of Belle Vue the added parts of Saint Cuthbert Without and the added part of Wetheral and in the event of the Corporation not proceeding with such works within such period as aforesaid or not proceeding with the same with due diligence the requirements of this

Limiting
time for
execution of
sewage
works.

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912. Article may be enforced in the manner provided by Section 299 of the Public Health Act 1875 as if this Article were an Order of the *Carlisle Order.* Local Government Board limiting the time for the performance by the Corporation of their duty in that behalf and the Corporation had not performed the duty hereby imposed within the time limited by the Order.

Alteration of parishes.

Art. XXVI.—(1) The added parts of Cummersdale the added parts of Saint Cuthbert Without the added part of Stanwix and the added part of Wetheral shall respectively be separated from the parishes or townships of which they now form part and those parts and the added part of Belle Vue shall be amalgamated with the existing Parish of Carlisle.

(2) The excluded part of Belle Vue shall be amalgamated with the existing Parish of Grinsdale the excluded part of Saint Cuthbert Without which lies to the north of the added parts of Saint Cuthbert Without and of the added part of Wetheral shall be amalgamated with the existing Parish of Wetheral as altered by subdivision (1) of this Article and the excluded part of Stanwix which lies to the west of the added part of Stanwix and of the existing Parish of Kingmoor shall be amalgamated with the existing Parish of Kingmoor.

Rural District Councillors and Guardians.

Art. XXVII. Subject to the provisions of Section 60 of the Act of 1894 the following provisions shall take effect:—

(1) The wards of the existing Parish of Carlisle shall be abolished and the number of Guardians for the Parish of Carlisle shall be increased from sixteen to twenty:

(2) The persons who at the commencement of this Order are holding the office of Guardian of the Poor for the several wards of the existing Parish of Carlisle shall be deemed to have been elected for and shall represent the Parish of Carlisle until the date upon which they would have retired if this Order had not been made:

(3)—(A) The following persons shall cease to hold the office of Rural District Councillor but shall continue to act as members of the Board of Guardians of the Carlisle Union and shall be deemed to have been elected as Guardians for the Parish of Carlisle and shall represent that parish upon the said Board of Guardians until the date upon which they would have retired if this Order had not been made:—

(i) The person who at the commencement of this Order is holding the offices of Rural District Councillor and Guardian of the Poor for the Parish of Belle Vue;

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

(ii) One person to be chosen by the Rural Council by ballot at their meeting held next before the said date from the three persons holding the said offices for the existing Parish of Saint Cuthbert Without ;

A.D. 1912.

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Order.

(iii) Two persons to be chosen as in the last preceding paragraph from the three persons holding the said offices for the existing Parish of Stanwix :

(B) The other persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian of the Poor for the existing Parish of Saint Cuthbert Without and for the existing Parish of Stanwix and the persons who at the said date are holding those offices for the existing Township of Cummersdale and the existing Parish of Kingmoor shall respectively be deemed to have been elected for and shall represent the Parish of Saint Cuthbert Without the Parish of Stanwix the Township of Cummersdale and the Parish of Kingmoor until the date on which they would have retired if this Order had not been made :

(c) The person who at the commencement of this Order is holding the offices of Rural District Councillor and Guardian of the Poor for the united parishes of Grinsdale and Kirkandrews upon Eden shall be deemed to have been elected for and shall represent those parishes as altered by this Order until the date on which he would have retired if this Order had not been made :

(D) The part of the existing Parish of Saint Cuthbert Without which is by this Order included in the Parish of Wetheral shall be included in the Wetheral Ward of that Parish and the person who at the commencement of this Order is holding the offices of Rural District Councillor and Guardian of the Poor for that ward shall be deemed to have been elected for and shall represent that ward as altered by this Order until the date on which he would have retired if this Order had not been made :

(4)—(A) For the purposes of the election in the month of March One thousand nine hundred and thirteen and of all subsequent elections of Guardians the Parish of Carlisle shall be divided into ten wards which shall respectively be co-terminous in area with and shall bear the same names as the wards into which the City is divided for the purposes of the election of Councillors :

(B) Two Guardians shall be assigned to each of the said wards.

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

Carlisle
Order.

Parish
 Councils.

Art. XXVIII.—(1) Subject to the provisions of this Order the Parish Council of the Parish of Belle Vue shall cease to exist and any powers and duties transferred by the Act of 1894 to the said Parish Council or to the Parish Councils of the existing Parishes or Townships of Cummersdale Saint Cuthbert Without Stanwix and Wetheral shall so far as regards the added part of Belle Vue the added parts of Cummersdale the added parts of Saint Cuthbert Without the added part of Stanwix or the added part of Wetheral be vested in exerciseable by and imposed on the persons and authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added part of Belle Vue the added parts of Cummersdale the added parts of Saint Cuthbert Without the added part of Stanwix or the added part of Wetheral as the case may be had been included in a parish in the existing City on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the added part of Belle Vue the added parts of Cummersdale the added parts of Saint Cuthbert Without the added part of Stanwix or the added part of Wetheral for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid Any property or liabilities of the said Parish Councils held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall so far as regards the added part of Belle Vue the added parts of Cummersdale the added parts of Saint Cuthbert Without the added part of Stanwix or the added part of Wetheral by virtue of this Order be transferred to and vest in and attach to the Corporation.

(2) The wards of the existing Parish of Saint Cuthbert Without and of the existing Parish of Stanwix shall be abolished and the Parish Council of the existing Township of Cummersdale of the existing Parish of Kingmoor of the existing Parish of Saint Cuthbert Without of the existing Parish of Stanwix and of the existing Parish of Wetheral shall be deemed to have been elected and shall be the Parish Council for the Township of Cummersdale the Parish of Kingmoor the Parish of Saint Cuthbert Without the Parish of Stanwix or the Parish of Wetheral as the case may be and the Parish Councillors representing the Wetheral Ward of the Parish of Wetheral shall continue to represent that ward as altered by this Order.

Audit of
 accounts of
 Carlisle
 Burial Com-
 mittee and
 Belle Vue
 Parish
 Council.

Art. XXIX. The accounts of the Carlisle Burial Committee and the Parish Council of Belle Vue and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and with the like incidents and consequences as if this Order had not been made;

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

Provided that the audit may be held as soon as practicable after the commencement of this Order any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor at the audit to be due from any person shall be paid to the Treasurer of the City and shall be a matter for adjustment under Section 62 of the Act of 1888.

A.D. 1912.

Carlisle
Order.

Art. XXX. Nothing in this Order shall affect the ecclesiastical divisions of any parish or township or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any existing parish or township affected by this Order.

Ecclesiastical
divisions and
charities.

Art. XXXI. Until new valuation lists are in force—

Valuation
lists.

- (1) The portions of the valuation lists of the existing Parishes or Townships of Belle Vue Cummersdale Saint Cuthbert Without Stanwix and Wetheral which respectively relate to hereditaments in the added part of Belle Vue the added parts of Cummersdale the added parts of Saint Cuthbert Without the added part of Stanwix and the added part of Wetheral shall be deemed to form part of the valuation list of the Parish of Carlisle;
- (2) The remaining portion of the valuation list of the existing Parish of Belle Vue shall be deemed to form part of the valuation list of the Parish of Grinsdale;
- (3) The remaining portion of the valuation list of the existing Township of Cummersdale shall be deemed to be the valuation list of the Township of Cummersdale;
- (4) The portion of the valuation list of the existing Parish of Saint Cuthbert Without which relates to hereditaments in the part of that Parish which is by this Order included in the Parish of Wetheral and the remaining portion of the valuation list of the existing Parish of Wetheral shall be deemed to be the valuation list of the Parish of Wetheral;
- (5) The remaining portion of the valuation list of the existing Parish of Saint Cuthbert Without shall be deemed to be the valuation list of the Parish of Saint Cuthbert Without;
- (6) The portion of the valuation list of the existing Parish of Stanwix which relates to hereditaments in the part of that Parish which is by this Order included in the Parish of Kingmoor shall be deemed to form part of the valuation list of the Parish of Kingmoor; and

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

Carlisle
Order.

- (7) The remaining portion of the valuation list of the existing Parish of Stanwix shall be deemed to be the valuation list of the Parish of Stanwix.

County rate
basis.

Art. XXXII.—(1) Subject to any future revision the basis or standard of the county rate for the County shall be deemed to be altered—

- (a) by the omission therefrom of the reference to the total annual value of the property in the Parish of Belle Vue by the addition to the amount appearing therein as the total annual value of the property in the existing Parish of Carlisle of such a sum as will represent the annual value of the property in the part of the Parish of Belle Vue which is included by this Order in the Parish of Carlisle and by the addition to the amount appearing therein as the total annual value of the property in the existing Parish of Grinsdale of such a sum as will represent the annual value of the property in the part of the Parish of Belle Vue which is included by this Order in the Parish of Grinsdale;
- (b) by the deduction from the amount appearing therein as the total annual value of the property in the existing Parishes or Townships of Cummersdale Saint Cuthbert Without Stanwix and Wetheral of such a sum in each case as will represent the annual value of the property in the part or parts of the parish or township by this Order included in the Parish of Carlisle and by the addition of the amounts so deducted to the amount appearing therein as the total annual value of the property in the existing Parish of Carlisle;
- (c) by the deduction from the amount appearing therein as the total annual value of the property in the existing Parish of Saint Cuthbert Without of such a sum as will represent the annual value of the property in the part of the existing Parish of Saint Cuthbert Without which is included by this Order in the Parish of Wetheral and by the addition of the amount so deducted to the amount appearing therein as the total annual value of the property in the existing Parish of Wetheral; and
- (d) by the deduction from the amount appearing therein as the total annual value of the property in the existing Parish of Stanwix of such a sum as will represent the annual value of the property in the part of the existing Parish of

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

Stanwix which is included by this Order in the Parish of Kingmoor and by the addition of the amount so deducted to the amount appearing therein as the total annual value of the property in the existing Parish of Kingmoor.

A.D. 1912.

*Carlisle
Order.*

(2) For the purposes of this Article the annual value of the property in the part or parts of a parish or township which is included by this Order in the Parish of Carlisle or in the Parish of Grinsdale or in the Parish of Kingmoor or in the Parish of Wetheral shall be the amount which bears the same relation to the total annual value of the existing parish or township as the assessable value of the property in the included part or parts of the existing parish or township bears to the total assessable value of property in the existing parish or township and the total annual value of the existing parish or township shall be the amount appearing as such in the basis or standard of the county rate.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish or township or in the part or parts included in the Parish of Carlisle or in the Parish of Grinsdale or in the Parish of Kingmoor or in the Parish of Wetheral as the case may require.

Art. XXXIII. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the parishes or townships affected by this Order shall be deemed to continue unaltered until the new registers and lists come into operation :

*Saving for
existing lists
of parliamen-
tary voters
&c.*

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of any Parish Meeting the town clerk or the clerk of the County Council as the case may require shall if and when necessary cause the register of parochial electors to be altered in such manner as may be requisite to give effect to the provisions of this Order.

Art. XXXIV. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say :—

*Settlement
and removal
of the poor.*

- (1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in any of the existing Parishes or Townships of Belle Vue Carlisle Cummersdale Grinsdale Kingmoor Saint Cuthbert Without Stanwix or Wetheral by reason of any residence

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

*Carlisle
Order.*

completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—

- (i) in the existing Parish of Carlisle ; or
- (ii) in the part of any of the existing parishes or townships included by this Order in the Parish of Carlisle ; or
- (iii) in the excluded part of Belle Vue ; or
- (iv) in that part of the existing Township of Cummersdale which by virtue of this Order will form the Township of Cummersdale ; or
- (v) in the existing Parish of Grinsdale ; or
- (vi) in the existing Parish of Kingmoor ; or
- (vii) in the part of the existing Parish of Saint Cuthbert Without included by this Order in the Parish of Wetheral ; or
- (viii) in that part of the existing Parish of Saint Cuthbert Without which by virtue of this Order will form the Parish of Saint Cuthbert Without ; or
- (ix) in the part of the existing Parish of Stanwix included by this Order in the Parish of Kingmoor ; or
- (x) in that part of the existing Parish of Stanwix which by virtue of this Order will form the Parish of Stanwix ; or
- (xi) in the excluded part of Wetheral

shall be deemed to have acquired or to be in the course of acquiring in the first and second cases a settlement in the Parish of Carlisle in the third and fifth cases a settlement in the Parish of Grinsdale in the fourth case a settlement in the Township of Cummersdale in the sixth and ninth cases a settlement in the Parish of Kingmoor in the seventh and eleventh cases a settlement in the Parish of Wetheral in the eighth case a settlement in the Parish of Saint Cuthbert Without and in the tenth case a settlement in the Parish of Stanwix and in each case as if the existing parish or township or the specified part of the existing parish or township were and had always been the parish or a part of the parish or township in which by virtue of this Article the person shall be deemed to have acquired or to be in the course of acquiring a settlement:

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

(2) Every person who at the commencement of this Order has A.D. 1912.
 acquired or is in the course of acquiring a status of *Carlisle*
 irremovability from the Carlisle Union by reason of *Order.*
 residence—

- (i) in the existing Parish of Carlisle; or
- (ii) in the part of any of the existing parishes or townships included by this Order in the Parish of Carlisle; or
- (iii) in the excluded part of Belle Vue; or
- (iv) in that part of the existing Township of Cummersdale which by virtue of this Order will form the Township of Cummersdale; or
- (v) in the existing Parish of Grinsdale; or
- (vi) in the existing Parish of Kingmoor; or
- (vii) in the part of the existing Parish of Saint Cuthbert Without included by this Order in the Parish of Wetheral; or
- (viii) in that part of the existing Parish of Saint Cuthbert Without which by virtue of this Order will form the Parish of Saint Cuthbert Without; or
- (ix) in the part of the existing Parish of Stanwix included by this Order in the Parish of Kingmoor; or
- (x) in that part of the existing Parish of Stanwix which by virtue of this Order will form the Parish of Stanwix; or
- (xi) in the excluded part of Wetheral

shall be deemed to have acquired or to be in course of acquiring the like status by reason of residence in the first and second cases in the Parish of Carlisle in the third and fifth cases in the Parish of Grinsdale in the fourth case in the Township of Cummersdale in the sixth and ninth cases in the Parish of Kingmoor in the seventh and eleventh cases in the Parish of Wetheral in the eighth case in the Parish of Saint Cuthbert Without and in the tenth case in the Parish of Stanwix.

Art. XXXV. Notwithstanding the alteration in the areas of parishes or townships effected by this Order all contribution orders made by the Guardians of the Poor of the Carlisle Union and all precepts made by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made.

Saving for contribution orders and precepts.

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

Carlisle
Order.
Arrears of
rates.

Art. XXXVI.—(1) All sums in respect of rates made by the Overseers of the Poor of the existing Township of Cummersdale of the existing Parish of Saint Cuthbert Without of the existing Parish of Stanwix or of the existing Parish of Wetheral and due or owing at the commencement of this Order shall be collected and recovered by the Overseers of the Poor of the Township of Cummersdale or of the Parish of Saint Cuthbert Without or of the Parish of Stanwix or of the Parish of Wetheral as the case may be as if this Order had not been made.

(2) All sums in respect of rates made by the Overseers of the Poor of the Parish of Belle Vue and due or owing at the commencement of this Order shall be collected and recovered in respect of the added part of Belle Vue by the Overseers of the Poor of the Parish of Carlisle and in respect of the excluded part of Belle Vue by the Overseers of the Poor of the Parish of Grinsdale.

Dissolution
of Stanwix
Special
Drainage
District.

Art. XXXVII. The Stanwix Special Drainage District shall be dissolved and so much thereof as is not included in the added part of Stanwix shall be merged in the Parish of Stanwix and that Parish shall be a contributory place of the Rural District as diminished by this Order.

Borrowing
powers for
purposes of
Order.

Art. XXXVIII. For the purpose of defraying the costs of obtaining this Order and any expenses under this Order which in the opinion of the Local Government Board are properly chargeable to capital the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the borough fund and borough rate or the district fund and general district rate of the City for the purpose of securing the repayment of any moneys so borrowed and the interest thereon. Provided that all such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Local Government Board determine.

Short title.

Art. XXXIX. This Order may be cited as the Carlisle (Extension) Order 1912.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

The SCHEDULE above referred to.

A.D. 1912.

*Carlisle
Order.*

PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
44 Geo. III. c. lviii. -	An Act for lighting the Streets Lanes and other publick Passages and Places within the City of Carlisle in the County of Cumberland and the Suburbs of the said City for paving the Foot Paths of the Streets of the said City and Suburbs and for otherwise improving the said City.
7 & 8 Geo. IV. c. lxxxvi. -	An Act for watching regulating and improving the City of Carlisle and the Suburbs thereof.
13 Vict. c. xix. -	The Carlisle Gas Act 1850.
36 & 37 Vict. c. clxxiii. -	The Carlisle Improvement Act 1873.
50 Vict. Sess. 2. c. xix. -	The Carlisle Corporation Act 1887.
61 & 62 Vict. c. ccxxv. -	The Carlisle Corporation (Water) Act 1898.
4 Edw. 7. c. ccxlv. -	The Carlisle Corporation Act 1904.
6 Edw. 7. c. xii. -	The Carlisle Corporation Act 1906.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order thereby confirmed.
13 & 14 Vict. c. cviii.	The Public Health Supplemental Act 1850 (No. 3).	The Order of the General Board of Health relating to Carlisle dated the 31st day of July 1850.
56 & 57 Vict. c. cxv.	The Local Government Board's Provisional Orders Confirmation (No. 4) Act 1893.	The Order relating to Carlisle dated the 29th day of March 1893.
58 & 59 Vict. c. lxxviii.	The Electric Lighting Orders Confirmation (No. 3) Act 1895.	The Carlisle Corporation Electric Lighting Order 1895.
10 Edw. 7. & 1 Geo. 5. c. lxxxvi.	The Local Government Board's Provisional Orders Confirmation (No. 9) Act 1910.	The Carlisle Order 1910.
1 & 2 Geo. 5. c. clx.	The Electric Lighting Orders Confirmation (No. 1) Act 1911.	The Carlisle Corporation Electric Lighting (Extension) Order 1911.

Given under the Seal of Office of the Local Government Board
this Twentieth day of May One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

BOROUGH OF WALLASEY.

*Wallasey
Order.*

*Provisional Order made in pursuance of Sections 54 and 59
of the Local Government Act 1888.*

To the Mayor Aldermen and Burgesses of the Borough of
Wallasey;—

To the County Council of the County of Chester;—

To the Justices of the Peace for the County of Chester in Quarter
Sessions assembled;—

And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by Section 54 of the Local Government Act 1888 (which
Act is herein-after referred to as "the Act") the Local Government
Board are empowered to make a Provisional Order for constituting
any Borough having a population of not less than fifty thousand into
a County Borough;

And whereas the Borough of Wallasey (herein-after referred to as
"the Borough") in the County of Chester is a Borough within the
meaning of the Act and has a population exceeding fifty thousand and
is subject to the jurisdiction of the Mayor Aldermen and Burgesses of
the Borough of Wallasey acting by the Council (herein-after referred to
as "the Corporation");

And whereas by virtue of an Order of the Local Government
Board dated the Fourteenth day of August One thousand eight hundred
and eighty-eight as altered by divers Orders made by the Local
Government Board the number of County Councillors for the Adminis-
trative County of Chester (herein-after referred to as "the Adminis-
trative County") is sixty-one and the Borough comprises five electoral
divisions of the Administrative County and accordingly five County
Councillors are apportioned to the Borough:

51 & 52 Vict.
c. 41. Now therefore We the Local Government Board in pursuance of
the powers given to Us by Sections 54 and 59 of the Act and by any
other enactments in that behalf do hereby order that from and after
the date of the Act of Parliament confirming this Order the following
provisions shall take effect:—

Commence-
ment of
Order.

Art. I. This Order shall except so far as is otherwise herein
expressly provided and so far as there may be anything in the subject-
matter or context inconsistent therewith come into operation on the First
day of April One thousand nine hundred and thirteen (which date is
herein-after referred to as "the commencement of this Order"):

Provided that for the purposes of all proceedings preliminary or
relating to the next triennial election of County Councillors for the

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

Administrative County this Order shall operate from such earlier date as may be necessary. A.D. 1912.

*Wallasey
Order.*

Art. II. The Borough shall be constituted a County Borough and all the provisions of the Act respecting County Boroughs shall apply to the Borough as if the Borough had been named in the Third Schedule to the Act and as if Chester had been specified in that schedule as the County in which the Borough should be deemed for the purposes of the Act to be situate : Constitution of County Borough.

Provided that for the purposes of the said provisions "the appointed day" shall be deemed to mean the First day of April One thousand nine hundred and thirteen.

Art. III.—(1) An equitable adjustment shall be made respecting the distribution of the proceeds of the local taxation licences of the estate duty grant and of the Local Taxation (Customs and Excise) duties and respecting all other financial relations or questions between the Administrative County and the Borough and in any case where the constitution of the County Borough by this Order affects the distribution of the said proceeds between the Administrative County on the one hand and any other County Borough on the other hand or any financial relations or questions between those areas or any adjustment which has been made in regard to the said distribution and financial relations or questions equitable adjustments may be made between the areas interested. Adjustment between new County Borough and County or County and other County Boroughs.

For the purposes of this subdivision or of anything done or to be done in pursuance of this subdivision any reference in the said subdivision to the proceeds of licences or duties shall include a reference to the sums which in pursuance of subsection (4) of Section 17 of the Finance Act 1907 as amended by Section 6 of the Finance Act 1908 Section 88 of the Finance (1909-10) Act 1910 the Revenue Act 1911 and any subsequent Act have been paid or will be payable in lieu of those proceeds.

(2) Any such adjustment as is authorised by subdivision (1) of this Article may be made by agreement between the Councils of the Administrative County the Borough and the County Boroughs affected and if such adjustment has not been made before the Thirtieth day of September One thousand nine hundred and thirteen then on the application of any of the Councils interested the Local Government Board may if they think fit either make the adjustment themselves or appoint an arbitrator to make it.

(3) In any case in which an agreement for equitable adjustment as aforesaid shall not have been made the provisions of the Act relating to adjustments between Administrative Counties and County Boroughs

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

*Wallasey
Order.*

shall apply with the necessary modifications and the Local Government Board or an arbitrator appointed by them as the case may be shall be substituted in those provisions for the Commissioners appointed under the Act and notwithstanding anything in the provisions of this Order or of the Act any such adjustment and the determination of any matter incidental or in relation thereto or consequent thereon shall when made by the Local Government Board be deemed to be made by them otherwise than as arbitrators and any arbitrator appointed by them shall be deemed to be an arbitrator within the meaning of Section 62 of the Act and the provisions of the Act shall apply accordingly:

Provided—

(a) that in lieu of subsection (6) of Section 61 of the Act subsections (1) and (5) of Section 87 of the Act shall apply to any inquiries which may be directed by the Local Government Board under this Article and to the costs of those inquiries; and

(b) that subsection (6) of Section 32 of the Act shall apply to any agreement or any award made under this Article.

Adjustment
for purposes
of Licensing
(Consolidation)
Act
1910.

Art. IV.—(1) An equitable adjustment shall be made between the Administrative County and the Borough respecting the interest of the Borough in any compensation fund constituted under Section 21 of the Licensing (Consolidation) Act 1910 or under any enactment repealed by that Act.

(2) Such adjustment shall be made by agreement between the Compensation Authorities (as defined by the Licensing (Consolidation) Act 1910) for the Administrative County and for the Borough within twelve months from the commencement of this Order or in default of agreement by an arbitrator appointed by the Secretary of State.

(3) For the purpose of such adjustment an arbitrator appointed by the Secretary of State shall be deemed to be an arbitrator within the meaning of Section 62 of the Act and the provisions of the Act shall apply accordingly.

Alteration in
County Councillors and
County
Aldermen.

Art. V.—(1) Subject to the provisions of Section 54 of the Act—

(a) the number of County Councillors for the Administrative County shall be reduced from sixty-one to fifty-six and the said Order dated the Fourteenth day of August One thousand eight hundred and eighty-eight as altered as aforesaid shall be further altered and shall have effect accordingly and any casual vacancy occurring in the office of County Councillor for any electoral division of the

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxxxvii.]
Provisional Orders Confirmation (No. 11) Act, 1912.

Borough between the date of the Act of Parliament confirming this Order and the commencement of this Order shall not be filled up:

A.D. 1912.

*Wallasey
Order.*

- (b) the number of Aldermen for the Administrative County may remain unaltered until the ordinary day of election of Aldermen in the year one thousand nine hundred and sixteen but at that election nine Aldermen only shall be elected in place of those who then go out of office Provided that no election to fill a casual vacancy among the Aldermen who will go out of office in the year one thousand nine hundred and sixteen shall be held until their number has been reduced to less than nine.

(2) Save as aforesaid no other County Councillor or County Alderman shall be deemed to lose his qualification or to vacate his office by reason of the constitution of the County Borough.

Art. VI.—(1) Every officer or servant of or paid by the Council of the Administrative County or of or paid by the Standing Joint Committee of the Administrative County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of that section shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

Compensa-
tion to exist-
ing officers.

(2) For the purposes of subdivision (1) of this Article any officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Council of the Administrative County or the Standing Joint Committee of the Administrative County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(3) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or

[Ch. cxxxvii.] *Local Government Board's [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.*

A.D. 1912. loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

*Wallasey
Order.*
Short title.

Art. VII. This Order may be cited as the County Borough of Wallasey Order 1912.

Given under the Seal of Office of the Local Government Board
this Seventeenth day of May One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

SECOND SCHEDULE.

PART I.

RULES FOR DETERMINING THE SUM TO BE PAID IN RESPECT OF
INCREASE OF BURDEN ON RATEPAYERS.

(1) Regard shall be had to—

(a) The difference between the burden on the ratepayers which will properly be incurred by the Council or other authority affected by the Order in meeting the cost of executing any of their powers and duties and the burden on the ratepayers which would properly have been incurred by that Council or other authority in meeting such cost had no alteration of boundaries or other change taken place:

(b) The length of time during which the increase of burden may be expected to continue.

(2) The sum payable by or to any council or other authority affected by the Order in respect of the increase of burden shall not exceed or if payable by instalments or by way of annuity the capitalised value of the instalments or annuity shall not exceed the average annual increase of burden multiplied by fifteen.

(3) Any sum payable in respect of the cost of maintenance of main roads shall be payable by way of annuity.

PART II.

RULES FOR DETERMINING ADJUSTMENTS OF THE LOCAL TAXATION LICENCES
THE ESTATE DUTY GRANT AND THE RESIDUE UNDER SECTION 1 OF THE
LOCAL TAXATION (CUSTOMS AND EXCISE) ACT 1890 FOR THE PURPOSES
OF THE ORDER RELATING TO WALLASEY.

The portion of the local taxation licences and estate duty grant payable or estimated to be payable in respect of the area of the County as it existed immediately before the appointed day shall after

the appointed day be divided between the County Council and the Corporation and the amount payable to each shall be apportioned on the following basis:— A.D. 1912.

- (a) There shall be apportioned to the County Council an amount equal to the average annual amounts of the compulsory payments and transfers made by or on behalf of that Council in accordance with Sections 24 and 26 of the Local Government Act 1888 for and in respect of the five years ending the Thirty-first day of March One thousand nine hundred and thirteen less the portion of such average annual amount paid and transferred in respect of the specified area and such last-mentioned amount shall be apportioned to the Corporation:

Provided that if any difficulty arises in ascertaining the sum to be apportioned in respect of any item the sum shall be divided according to the respective rateable values immediately before the appointed day of the County less the specified area and of that area:

- (b) Out of the balance of the said portion of the local taxation licences and estate duty grant there shall next be apportioned to the County Council a sum equal to one-half of the average annual cost during the five years preceding the appointed day of the maintenance of the main roads within the County (including any payments made in respect of the interest on or of the repayment of the capital of loans raised on account of such main roads) after deducting the amount of one-half of such cost incurred in respect of the main roads within the specified area and such last-mentioned amount shall be apportioned to the Corporation Provided that—

(i) if such balance is insufficient to meet the whole of one-half of the cost of such roads the amounts apportioned to the County Council and the Corporation respectively shall be reduced proportionately; and

(ii) if it appear that the County Council have failed to declare any roads in the County to be main roads which ought to have been so declared or have declared any roads to be main roads which ought not to have been so declared proper adjustments shall be made in the calculation of the cost of maintenance of main roads in the County under this rule by the inclusion of the cost of such roads as ought to have been declared to be main roads or the exclusion of the cost of such roads as ought not to have been declared to be main roads as the case may require;

[Ch. cxxxvii.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (No. 11) Act, 1912.

A.D. 1912.

- (c) If any balance of the local taxation licences and estate duty grant remains after apportioning between the County Council and the Corporation the sums ascertained in accordance with the foregoing rules such balance shall be divided between the County Council and the Corporation in proportion to the rateable values immediately before the appointed day of the County less the specified area and of that area respectively.

The residue under Section 1 of the Local Taxation (Customs and Excise) Act 1890 payable or estimated to be payable in respect of the area of the County as it existed immediately before the appointed day shall after the appointed day be divided between the County Council and the Corporation in proportion to the rateable values immediately before the appointed day of the County less the specified area and of that area respectively.

In this Part of this Schedule—

- (1) The expression “the appointed day” means the First day of April One thousand nine hundred and thirteen;
- (2) The expressions “the County” and “the County Council” mean respectively the Administrative County of Chester and the County Council of that County;
- (3) The expression “the Corporation” means the Mayor Aldermen and Burgesses of the Borough of Wallasey acting by the Council;
- (4) The expression “the specified area” means the area of the Borough of Wallasey constituted a County Borough by the Order relating to Wallasey;
- (5) The expression “rateable value” means the rateable value stated in the last poor rate.

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